



## **REFERRAL AGREEMENT**

### **1. Purpose**

Referrer shall introduce prospective business clients seeking commercial financing ("Prospects") to Axiant LLC d/b/a Axiant Partners ("Company"). Company may present such Prospects to lenders, financial institutions, private capital providers, or other funding sources at its discretion.

### **2. Referral Fee - 35% Commission**

Company shall pay Referrer thirty-five percent (35%) of the net revenue actually received by Company from any funded transaction directly resulting from Referrer's introduction. "Net revenue" means gross fees or commissions received by Company, less any direct transaction costs charged to Company by the lender or funding source. Payment shall be issued within thirty (30) days of Company's receipt of funds. Once a transaction has funded, the commission rate and terms applicable to that transaction are fixed and will not be reduced or changed retroactively, except as expressly provided in Section 4 (Commission Clawback). This Section governs a Prospect's first funded transaction; subsequent transactions for the same Prospect are governed by Section 3 (Renewal and Repeat Transactions).

### **3. Renewal and Repeat Transactions**

A "Renewal Transaction" means any funding for a Prospect subsequent to that Prospect's first funded transaction, including without limitation a renewal, refinance, re-advance, additional draw, add-on, or new financing of any type, whether with the same or a different funding source.

Unless the parties agree otherwise in writing before the Renewal Transaction is submitted, Company shall pay Referrer ten percent (10%) of Company's net revenue from that Renewal Transaction.

Where Referrer materially participates in a Renewal Transaction - re-engaging the Prospect, obtaining updated financial documentation or a completed application, and remaining the Prospect's point of contact through funding - the parties shall agree in writing on a commission rate of up to thirty-five percent (35%) for that transaction. Any such agreement applies only to the specific Renewal Transaction identified in it and does not establish a rate for any other transaction.

Company shall notify Referrer by email when Company becomes aware of a Renewal Transaction opportunity involving a Prospect introduced by Referrer, so that Referrer may elect to participate. Written agreement under this Section may be given by email in accordance with Section 12 (Notices). Absent written agreement before the Renewal Transaction is submitted, the default rate stated above applies.

The commission-protection period in Section 6 applies to a Prospect's first funded transaction. Renewal Transactions are governed exclusively by this Section 3. Payment timing, clawback, and all other terms of this Agreement apply to Renewal Transactions in the same manner as to a first funded transaction.

### **4. Commission Clawback**

If a funded transaction for which a referral commission has been paid later defaults, is rescinded, charged back, or otherwise results in the Company returning any portion of its commission, the Referrer agrees that the related referral commission is subject to clawback. The Referrer shall repay such amount within forty-five (45) days of written notice from the Company. The Company may offset clawback amounts against future commissions payable. This provision survives termination or expiration of this Agreement.

## **5. Non-Circumvention & Protection**

If Referrer facilitates contact between a Prospect and any Funding Source introduced by Company during or after the Term, and such interaction results in funding, Company shall be deemed the procuring cause and entitled to full commission. Circumvention results in immediate liability for commissions due, damages, and attorneys' fees.

## **6. Term**

This Agreement remains in effect for twenty-four (24) months. Commission protection for introduced Prospects extends sixty (60) months from initial introduction.

## **7. Termination**

Either party may terminate this Agreement at any time, with or without cause, upon thirty (30) days' prior written notice to the other party. Termination does not affect any Prospect the Referrer introduced before the effective date of termination. The Referrer remains entitled to the referral commission described in Sections 2 and 3 for any such Prospect that funds within the commission-protection period in Section 6, and the Company will continue to pay those commissions as and when the related funds are received. Sections 2, 3, 4, 5, 6, 8, and 10 survive termination or expiration of this Agreement.

## **8. Amendment**

This Agreement may be amended or modified only by a written instrument signed by both parties. No oral statement, email, course of dealing, or unilateral notice modifies this Agreement. Any amendment applies prospectively only and will not reduce, alter, or eliminate a referral commission that has already been earned or that is payable on any Prospect introduced before the amendment's effective date; those commissions remain governed by the terms in effect when the Prospect was introduced. For the avoidance of doubt, the Company will not change the commission rate or terms of a transaction after that transaction has funded. A rate agreed in writing for a specific Renewal Transaction under Section 3 is not an amendment of this Agreement.

## **9. Independent Contractor**

Referrer is an independent contractor. Nothing herein creates a partnership, employment, or agency relationship.

## **10. Confidentiality**

Referrer shall maintain strict confidentiality regarding Company funding relationships and proprietary business practices.

## **11. Referrer Representations and Compliance**

The Referrer represents and warrants that:

- a. The Referrer is legally permitted to refer potential borrowers and receive referral compensation under applicable laws, regulations, and any contractual obligations to third parties.
- b. If the Referrer is employed by or affiliated with a vendor, dealership, brokerage, or other business entity, the Referrer represents that they have obtained any required authorization or consent from such entity to participate in this referral arrangement and receive compensation hereunder.
- c. The Referrer acknowledges that Axiant LLC d/b/a Axiant Partners is not responsible for verifying the Referrer's employment status, contractual obligations, or internal policies with any employer or affiliated organization.
- d. The Referrer agrees that it is solely responsible for complying with all applicable employment agreements, company policies, licensing requirements, and disclosure obligations related to receiving referral compensation.
- e. The Referrer agrees to indemnify and hold harmless Axiant LLC d/b/a Axiant Partners, its members, officers, employees, and affiliates from and against any claims, disputes, damages, liabilities, or expenses arising from the

Referrer's failure to obtain required authorization or comply with any obligations owed to a third party.

- f. The Referrer acknowledges that any referral compensation paid under this Agreement is independent contractor income and that the Referrer is solely responsible for all tax reporting and payment obligations associated with such compensation.

## 12. Notices

Any notice under this Agreement, including notice of termination under Section 7, a clawback demand under Section 4, or a renewal rate agreement under Section 3, may be given by email to the email address the other party regularly uses in connection with this Agreement, or to an updated email address a party designates in writing. Notice is deemed given on the date the email is sent, absent a bounce or delivery-failure response. Each party is responsible for keeping the other informed of its current email address.

## 13. Governing Law

This Agreement is governed by the laws of the State of Florida, without regard to its conflict-of-laws principles. The parties consent to the exclusive jurisdiction and venue of the state and federal courts located in Florida for any dispute arising out of or relating to this Agreement.

## 14. Severability

If any provision of this Agreement is held invalid or unenforceable, that provision shall be modified to the minimum extent necessary to make it enforceable or, if it cannot be, severed from this Agreement, and the remaining provisions shall continue in full force and effect.

## 15. Entire Agreement

This document constitutes the entire agreement between the parties.

### Axiant LLC d/b/a Axiant Partners

Company

Signature \_\_\_\_\_

Printed Name \_\_\_\_\_

Title \_\_\_\_\_

Date \_\_\_\_\_

### Referrer

Signature \_\_\_\_\_

Printed Name \_\_\_\_\_

Title \_\_\_\_\_

Date \_\_\_\_\_